

“A motion for judgment on the pleadings is the functional equivalent of a general demurrer.” (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant’s uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendant admitted the allegations of the complaint in her answer. As defendant filed no opposition to the present motion, the evidence presented is unopposed on the record. (*Arce* 181 Cal.App.4th at 485; *Evans* 28 Cal.App.4th at 549.) Defendant motion alleges the costs of the suit are \$468.50, but defendant has not submitted a memorandum of costs in support.

Based on the foregoing, plaintiff’s motion for judgment on the pleadings is granted. Accordingly, judgment is entered in favor of plaintiff for the principal of \$17,851.63; for pre-judgment interest (at the legal rate of ten percent (10%) per annum from March 3, 2023,) to the date judgment is entered, as alleged in the complaint; and for \$960.00 in attorney’s fees. Plaintiff is awarded costs of suit in an amount to be determined upon filing and service of a memorandum of costs.

3. S-CV-0052372 Baddawi, Samira v. Mi Pueblito Taqueria

Defendants’ joint motion to compel neuropsychological examination of plaintiff is continued to **July 14, 2026, at 8:30 a.m. in Department 32.**

4. S-CV-0053711 City of Lincoln v. The Gathering Inn

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion for Protective Order and Motion to Quash

Plaintiff moves for a protective order to prevent defendant The Gathering Inn from taking the deposition of current City Councilmember Ben Brown and former City Councilmember Paul Joiner. Plaintiff also moves to quash the deposition subpoena as to former Councilmember Joiner. Defendant opposes the motion.